2014096353 04/22/2014 08:30 AM
OFFICIAL RECORDS OF ALAMEDA COUNTY
PATRICK O'CONNELL
RECORDING FEE: 37.00

5 PGS

RECORDING REQUESTED BY:
Chicago Title Company
Order No.: FWAC-5851400251

When Recorded Mail Document To:
Robert and Laura Venning
1717 Mountain Blvd
Oakland. CA 94611

SPACE ABOVE THIS LINE FOR RECORDER'S USE

Easement Agreement

"THIS INSTRUMENT IS FILED FOR RECORD BY CHICAGO TITLE COMPANY AS AN ACCOMMODATION ONLY. IT HAS NOT BEEN EXAMINED AS TO ITS EXECUTION OR AS TO ITS EFFECT ON THE TITLE."

THIS PAGE ADDED TO PROVIDE ADEQUATE SPACE FOR RECORDING INFORMATION
(Additional recording fee applies)

RECORDING REQUESTED BY:
ROBERT VENNING
WHEN RECORDED MAIL TO:
Robert & Laura Venning
1717 Mountain Blvd.
Oakland, CA 94611

A.P.N. 048F-7362-008
A.P.N. 048F-7362-7-1

The undersigned grantor(s) declare(s):
Documentary transfer tax is $0.00.
Easement value less than $100.00.

KET 11911- Consideration
Less than $100

EASEMENT AGREEMENT

This Agreement made this 18th day of April, 2014, by and between Grantors, Robert S. Venning and Laura Siegel Venning, Trustees of The Venning 2002 Trust dated August 29, 2002, and any successor Trustee[s] thereof, hereinafter referred to as "Grantors" and Grantees, Robert S. Venning and Laura Siegel Venning as Trustees of The Venning 2002 Trust dated August 29, 2002, hereinafter referred to as "Grantees".

RECITALS

WHEREAS, Grantors are the owners of certain real property situated in the City of Oakland, County of Alameda, California, commonly known as 1731 Mountain Boulevard, Oakland, CA, hereinafter referred to as "Servient Tenement" or "1731" and more particularly described as:

BEGINNING AT A POINT ON THE NORTHEASTERN LINE OF THE 1.52 ACRE TRACT OF LAND CONVEYED TO CARL HECK, BY DEED DATED OCTOBER 27, 1919, AND RECORDED IN BOOK 2853 OF DEEDS, AT PAGE 19, DISTANT THEREON SOUTH 37° 54' 05" East 247.28 FEET FROM THE MOST NORTHERN CORNER OF SAID TRACT; AND RUNNING THENCE SOUTHEASTERLY ALONG SAID NORTHEASTERN LINE 50 FEET TO THE NORTHWESTERN LINE OF THE .641 ACRE TRACT OF LAND DESCRIBED IN A DEED TO STANLEY R. LIGHTBODY AND HARRIETTE LIGHTBODY, HIS WIFE, DATED OCTOBER 27, 1919, AND RECORDED IN BOOK 2853 OF DEEDS, AT PAGE 26; THENCE SOUTH 47° 03' 45" WEST ALONG SAID LAST MENTIONED LINE 195.33 FEET TO THE SOUTHWESTERN LINE OF SAID 1.52 ACRE TRACT; THENCE NORTHWESTERLY ALONG SAID LAST MENTIONED LINE 69.18 FEET TO A LINE DRAWN SOUTH 52° 05' 55" WEST FROM THE POINT OF BEGINNING; THENCE NORTH 52° 05' 55" EAST 210.55 FEET TO THE PONT OF BEGINNING.

WHEREAS, Grantees are the owners of certain real property situated in the City of Oakland, County of Alameda, California, commonly known as 1717 Mountain

Boulevard, Oakland, CA, hereinafter referred to as "Dominant Tenement" or "1717", and more particularly described as:

PARCEL ONE:

BEGINNING AT A POINT ON THE NORTHEASTERN LINE OF THE 1.52 ACRE TRACT OF LAND CONVEYED BY REALTY SYNDICATE COMPANY, A CORPORATION, TO CARL HECK, BY DEED DATED OCTOBER 27, 1919 AND RECORDED IN BOOK 2853 OF DEEDS, AT PAGE 19, RECORDS OF ALAMEDA COUNTY, DISTANT THEREON SOUTH 37° 54' 05" EAST 150.28 FEET FROM THE MOST NORTHERN CORNER OF SAID TRACT; AND RUNNING THENCE ALONG SAID NORTHEASTERN LINE SOUTH 37° 54' 05" EAST 47 FEET; THENCE SOUTH 52° 05' 55" WEST 223.59 FEET TO THE SOUTHWESTERN LINE OF SAID 1.52 ACRE TRACT; THENCE NORTHWESTERLY ALONG SAID LAST MENTIONED LINE 48.67 FEET TO A LINE DRAWN SOUTH 52° 05' 55" WEST FROM THE POINT OF BEGINNING; BEING A PORTION OF SAID 1.52 ACRE TRACT.

PARCEL 2:

BEGINNING AT A POINT ON THE NORTHEASTERN LINE OF THE 1.52 ACRE TRACT OF LAND CONVEYED BY REALTY SYNDICATE COMPANY, A CORPORATION, TO CARL HECK, BY DEED DATED OCTOBER 27, 1919, AND RECORDED IN BOOK 2853 OF DEEDS, AT PAGE 19, RECORDS OF ALAMEDA COUNTY, DISTANT THEREON SOUTH 37° 54' 05" EAST 197.28 FEET FROM THE MOST NORTHERN CORNER OF SAID TRACT; AND RUNNING THENCE ALONG SAID NORTHEASTERN LINE SOUTH 37° 54' 05" EAST 50 FEET; THENCE SOUTH 52° 05' 55" WEST 210.55 FEET TO THE SOUTHWESTERN LINE OF SAID 1.52 ACRE TRACT; THENCE NORTHWESTERLY ALONG SAID LAST MENTIONED LINE 51.67 FEET TO A LINE DRAWN SOUTH 52° 05' 55" WEST FROM THE POINT OF BEGINNING; AND THENCE NORTH 52° 05' 55" EAST 223.59 FEET TO THE POINT OF BEGINNING. BEING A PORTION OF SAID 1.52 ACRE TRACT.

WHEREAS, Dominant Tenement (Grantees) wishes to acquire certain exclusive rights over the (Grantors) Servient Tenement;

NOW THEREFORE, it is agreed as follows:

1. For valuable consideration, Grantors hereby grant to Grantees an easement for views, light and space, running with the land in perpetuity, and described by the following terms, conditions and restrictions:

    a. No new structure, modification of an existing structure or planting on 1731 which could in any respect affect the exposure at any location of 1717 to light from the sun at any time of day or year or affect the view of the sky from any location at 1717 or from any structure thereon as any such structure may from time to time exist, shall be erected or done without the prior written consent of the owners of the Dominant Tenement.

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b. No addition to an existing structure or new structure on 1731 shall have a second story, or exceed twelve (12) feet in height at its highest point without the prior written consent of the owners of 1717.

c. No new structure or addition to an existing structure shall be erected on the 1731 within fifteen (15) feet of the boundary line of 1717 without the prior written consent of the owners of 1717.

d. No planting which may exceed fifteen (15) feet in height shall be done within twenty-five (25) feet of the boundary line between 1731 and 1717 without the prior written consent of the owners 1717.

e. No structure or addition to an existing structure, nor any planting, shall be of a height to exceed an angle of 18 degrees above the horizontal as measured at a height of 10 feet from any point along a line 23 feet inside the 1717 property line with 1731without the written consent of the owners of 1717.

f. Should there be a violation of this covenant, the owner or owners of the 1717 shall be entitled to prohibitory and mandatory injunctive relief (which shall include a mandatory injunction requiring removal of the violation) together with any other remedy including damages and recovery of their costs and attorneys fees of any legal action or litigation.

g. If any portion of this covenant shall be determined to be unenforceable, the balance shall be enforced to the maximum feasible extent in accordance with its terms and the intent expressed in this Easement Grant.

h. The easement granted herein is appurtenant to the Dominant Tenement.

i. The easement granted herein is an exclusive right serving the Dominant Tenement for views, light and space.

j. The easement granted herein includes incidental rights of maintenance of trees, landscaping and/or structures affecting said easement.

k. Except in the case of an emergency, Grantees, its agents or contractors, shall first obtain permission to enter the property of Grantors for maintenance of said trees, landscaping or structures. Permission herein shall not be unreasonably withheld by Grantors. Said incidental rights of "maintenance" refer specifically to those rights granted in Paragraph a. hereinabove.

2. This instrument contains the entire agreement between the parties relating to the rights herein granted and the obligations herein assumed. Any oral representations or modifications concerning this instrument shall be of no force and effect excepting a subsequent modification in writing signed by the party to be charged.

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4. This instrument shall bind and inure to the benefit of the respective heirs, personal representatives, successors and assigns of the parties hereto.

IN WITNESS WHEREOF, the parties have executed this instrument the day and year first above stated.

GRANTORS AND GRANTEES:

Robert S. Venning

Robert S. Venning, Trustee
The Venning 2002 Trust

Laura Siegel Venning

Laura Siegel Venning, Trustee

STATE OF CALIFORNIA)
) SS
COUNTY OF ALAMEDA)

On April 18, 2014, before me, S. Kelley, a Notary Public, personally appeared Robert S. Venning and Laura Siegel Venning, who proved to me on the basis of satisfactory evidence to be the person(s) whose name(s) is/are subscribed to the within instrument and acknowledged to me that he/she/they executed the same in his/her/their authorized capacity(ies), and that by his/her/their signature(s) on the instrument the person(s), or the entity upon behalf of which the person(s) acted, executed the instrument.

I certify under PENALTY OF PERJURY under the laws of the State of California that the foregoing paragraph is true and correct.

WITNESS my hand and official seal.

Signature of Notary Public

S. KELLEY
Commission # 1950971
Notary Public - California
Alameda County
My Comm. Expires Sep 4, 2015

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